

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.
Date purchased

RYAN BENN,

Plaintiff designates New York
County as the place of trial,

Plaintiff,

The basis of venue is
County in which causes of action arose

- against -

SUMMONS

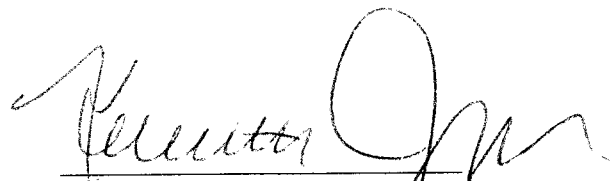
THE CITY OF NEW YORK, POLICE OFFICER
ANDREW MANCUSI and POLICE OFFICER
TYLER CONNER,

Defendants.

To the above named Defendants

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorneys within **20** days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
May 7, 2015



Kenneth Joelson, Esq.
Joelson & Rochkind, Esqs.
Attorneys for Plaintiff
149 West 72nd Street
New York, New York 10023
(212) 873-7063

Defendants' Address:

NYC: 100 Church Street, New York, NY 10013

Mancusi: (Shield # 10763) Housing Bureau, PSA5, 221 East 123rd Street, New York, NY 10029

Conner: (Shield # 21098) 23rd Precinct, 162 East 102nd Street, New York, NY 10029

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
RYAN BENN,

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, POLICE OFFICER
ANDREW MANCUSI and POLICE OFFICER
TYLER CONNER,

Defendants.
-----X

Plaintiff, Ryan Benn, complaining of defendants, by his attorneys, Joelson & Rochkind, Esqs., respectfully shows to this Court and alleges:

FIRST: At all times hereinafter mentioned, defendant, The City of New York, was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

SECOND: At all times hereinafter mentioned, the New York City Police Department, was and still is an agency of the defendant, The City of New York, engaged in the practice of law enforcement.

THIRD: At all times hereinafter mentioned, the defendant, the City of New York, employed certain police officers as employees of the New York City Police Department.

FOURTH: At all times hereinafter mentioned, the defendant, Police Officers Andrew Mancusi and Tyler Conner, were employees of the New York City Police Department and defendant, The City of New York.

FIFTH: On or about the 16th day of October, 2014, a Notice of Claim on behalf of the plaintiff was duly served upon the defendants in compliance with General Municipal Law Section 50-e.

SIXTH: That more than 30 days have elapsed since the service of said Notice of Claim and adjustment or payment thereof has been neglected or refused.

SEVENTH: That this action has been commenced within one year and ninety days after the happening of the events upon which these claims are based.

AS AND FOR A FIRST CAUSE OF ACTION

EIGHTH: On or about the 19th day of September, 2014, in the vicinity of 2127 1st Avenue, (on the eastside of 1st Avenue between East 109th Street and East 110th Street), in the County, City and State of New York, without just cause or provocation, defendants, Police Officers Andrew Mancusi and Tyler Conner, and other members and employees of the New York City Police Department violently assaulted, attacked, beat, struck, pushed and shoved the plaintiff, Ryan Benn, causing severe injuries to plaintiff as are hereinafter set forth.

NINTH: That at the time of the aforesaid assault, defendants, Police Officers Andrew Mancusi and Tyler Conner, and the aforesaid other members and employees of the New York City Police Department were acting within the scope of their duties while serving as police officers employed by the defendant, The City of New York.

TENTH: That as a result of the aforesaid incident, plaintiff, Ryan Benn, was caused to sustain serious permanent and temporary personal injuries and was rendered sick sore, lame and disabled.

ELEVENTH: That such acts committed by defendants and other members of the New York City Police Department constituted intentional, wanton, reckless and malicious conduct.

TWELFTH: That the amount of damages sought exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION

THIRTEENTH: Plaintiff repeats, realleges and reiterates each and every allegation contained in paragraphs "FIRST" through "TWELFTH" as if set forth herein at length.

FOURTEENTH: As a result of the foregoing acts of the defendants, plaintiff has been deprived of his civil rights, privileges and immunities as secured pursuant to the United States and New York State Constitutions and other laws.

FIFTEENTH: That said deprivation of plaintiff's civil rights constituted intentional, wanton, reckless and malicious conduct on the part of defendants.

SIXTEENTH: That as a result of the aforesaid deprivation of rights, plaintiff's health was impaired, he suffered great and violent shock to his nervous system causing great mental distress, anxiety, depression, humiliation and embarrassment and his reputation and character was injured.

SEVENTEENTH: That the amounts of damages sought exceed the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION

EIGHTEENTH: Plaintiff repeats, realleges and reiterates each and every allegation contained in paragraphs "FIRST" through "SEVENTEENTH" as if set forth herein at length.

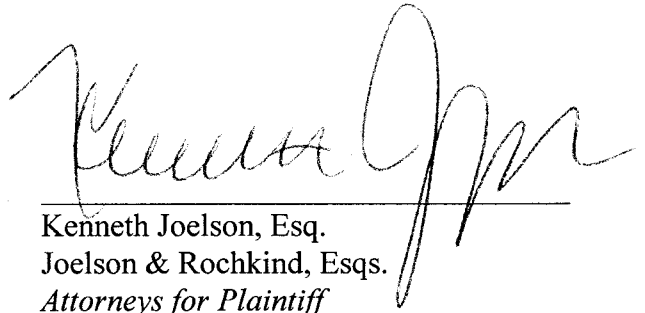
NINETEENTH: The aforementioned acts in knowingly and purposely causing and perpetuating the assault and battery upon plaintiff's person were willful and malicious and were intended to cause plaintiff physical, mental and emotional illness, distress, fright, fear and shock as well as to conceal defendants' improper and illegal behavior and conduct.

TWENTIETH: That as a result of defendants' actions in intentionally inflicting mental distress, plaintiff has been caused to become sick, sore, lame and disabled as hereinbefore set forth.

TWENTY-FIRST: The amount of damages sought exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

WHEREFORE, plaintiff demands judgement against defendants on the First Cause of Action, Second Cause of Action and Third Cause of Action, together with punitive damages, interest, costs and disbursements.

Dated: New York, New York
May 7, 2015

A handwritten signature in dark ink, appearing to read 'Kenneth Joelson', is written over a horizontal line.

Kenneth Joelson, Esq.
Joelson & Rochkind, Esqs.
Attorneys for Plaintiff
149 West 72nd Street
New York, New York 10023
(212) 873-7063

I, the undersigned, am an attorney admitted to practice in the courts of New York, and



Attorney's
Certification

certify that the annexed
has been compared by me with the original and found to be a true and complete copy thereof.

say that: I am the attorney of record, or of counsel with the attorney(s) of record, for

. I have read the annexed

know the contents thereof and the same are true to my knowledge, except those matters therein which are stated to be alleged on information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon the following.

The reason I make this affirmation instead of

is

I affirm that the foregoing statements are true under penalties of perjury.

Dated:

(Print signer's name below signature)

STATE OF NEW YORK, COUNTY OF NEW YORK

SS:

Ryan Benn

being sworn says: I am the plaintiff



Individual
Verification

in the action herein; I have read the annexed **Summons & Verified Complaint**
know the contents thereof and the same are true to my knowledge, except those matters therein which are stated to be alleged on information and belief, and as to those matters I believe them to be true.

the of



Corporate
Verification

a corporation, one of the parties to the action; I have read the annexed
know the contents thereof and the same are true to my knowledge, except those matters therein which are stated to be alleged on information and belief, and as to those matters I believe them to be true.

My belief, as to those matters therein not stated upon knowledge, is based upon the following:

Sworn to before me on May 7

, 2015

KENNETH JOELSON
Notary Public, State of New York
No. 4624342

Qualified in Nassau County

Commission Expires March 30, 2018

Ryan Benn
Ryan Benn

(Print signer's name below signature)

STATE OF NEW YORK, COUNTY OF

SS:

being sworn says: I am not a party to the action, am over 18 years of

age and reside at

On

, 20 , I served a true copy of the annexed

in the following manner:



Service
by Mail

by mailing the same in a sealed envelope, with postage prepaid thereon, in a post-office or official depository of the U.S. Postal Service, addressed to the address of the addressee(s) indicated below, which has been designated for service by the addressee(s) or, if no such address has been designated, is the last-known address of the addressee(s):



Personal
Service

by delivering the same personally to the persons at the address indicated below:



Service by
Facsimile

by transmitting the same to the attorney by facsimile transmission to the facsimile telephone number designated by the attorney for that purpose. In doing so, I received a signal from the equipment of the attorney served indicating that the transmission was received, and mailed a copy of same to that attorney, in a sealed envelope, with postage prepaid thereon, in a post office or official depository of the U.S. Postal Service, addressed to the address of the addressee(s) as indicated below, which has been designated for service by the addressee(s) or, if no such address has been designated, is the last-known address of the addressee(s):



Service by
Electronic
Means

by transmitting the same to the attorney by electronic means upon the party's written consent. In doing so, I indicated in the subject matter heading that the matter being transmitted electronically is related to a court proceeding:



Overnight
Delivery
Service

by depositing the same with an overnight delivery service in a wrapper properly addressed, the address having been designated by the addressee(s) for that purpose or, if none is designated, to the last-known address of addressee(s). Said delivery was made prior to the latest time designated by the overnight delivery service for overnight delivery. The address and delivery service are indicated below:

Sworn to before me on

, 20

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

RYAN BENN,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER ANDREW
MANCUSI and POLICE OFFICER TYLER CONNER,

Defendants.

SUMMONS and VERIFIED COMPLAINT

JOELSON & ROCHKIND

Attorneys for Plaintiff

149 WEST 72nd STREET
NEW YORK, N.Y. 10023
(212) 873-7063

Pursuant to 22 NYCRR 130-1.1-a, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, (1) the contentions contained in the annexed document are not frivolous and that (2) if the annexed document is an initiating pleading (i) the matter was not obtained through illegal conduct, or that if it was, the attorney or other persons responsible for the illegal conduct are not participating in the matter or sharing in any fee earned therefrom, and that (ii) if the matter involves potential claims for personal injury or wrongful death, the matter was not obtained in violation of 22 NYCRR 1200.41-a.

Dated: May 7, 2015

Signature

Print Signer's Name Kenneth Joelson, Esq.

Service of a copy of the within

is hereby admitted.

Dated:

Attorney(s) for

PLEASE TAKE NOTICE

Check Applicable Box

☐

NOTICE OF
ENTRY

that the within is a (certified) true copy of a
entered in the office of the clerk of the within-named Court on

20

☐

NOTICE OF
SETTLEMENT

that an Order of which the within is a true copy will be presented for settlement to the
Hon. , one of the judges of the within-named Court,
at
on 20 , at M.

Dated:

JOELSON & ROCHKIND

Attorneys for

To:

149 WEST 72nd STREET
NEW YORK, N.Y. 10023

Attorney(s) for